COURT OF APPEAL FOR ONTARIO

CITATION: UD Trading Group Holding Pte. Limited v. TransAsia Private Capital Limited, 2022 ONCA 100
DATE: 20220203
DOCKET: C69265

Doherty, Benotto and Huscroft JJ.A.

BETWEEN

UD Trading Group Holding Pte. Limited, UIL Singapore Pte. Limited, UIL Malaysia Limited, UIL Commodities DMCC, Vadox Corp. and Prateek Gupta

Plaintiffs (Appellants)

and

TransAsia Private Capital Limited, TA Private Capital Security Agent Ltd., Rutmet Inc. and Export Development Canada

Defendants (Respondents)

Michael D. Schafler and Ara Basmadjian, for the appellants

George J. Pollack and Faiz Lalani, for the respondents TransAsia Private Capital Limited, TA Private Capital Security Agent Ltd.

Rahul Shastri and Kristie Jennings, for the respondents Rutmet Inc.

Jamie Macdonald, for the respondents Export Development Canada

Heard: December 3, 2021

On appeal from the order of Justice C. Gilmore of the Superior Court of Justice, dated March 17, 2021, with reasons reported at 2021 ONSC 1957.

REASONS FOR DECISION